

Amendment No. 2 to HB2055

Clemmons
Signature of Sponsor

AMEND Senate Bill No. 2202

House Bill No. 2055*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 8, Chapter 27, is amended by adding the following as a new part:

8-27-1001. Definitions.

As used in this part:

(1) "Congenital defect" means a physical or chemical abnormality present in an individual that is inconsistent with the normal development of a human being of the individual's sex, including abnormalities caused by a medically verifiable disorder of sex development, but does not include gender dysphoria, gender identity disorder, gender incongruence, or any mental condition, disorder, disability, or abnormality;

(2) "Healthcare provider" means a healthcare professional, establishment, or facility licensed, registered, certified, or permitted pursuant to title 68 or title 63 and under the regulatory authority of:

(A) The department of health;

(B) An agency, board, council, or committee attached to the department of health; or

(C) The health facilities commission;

(3) "Hormone" means an androgen or estrogen;

(4) "Medical procedure" means:

(A) Surgically removing, modifying, altering, or entering into tissues, cavities, or organs of a human being; or

(B) Prescribing, administering, or dispensing any puberty blocker or hormone to a human being;

(5) "Puberty blocker" means a drug or device that suppresses the production of hormones in a minor's body to stop, delay, or suppress pubertal development; and

(6) "Sex" means an individual's immutable characteristics of the reproductive system that define the individual as male or female, as determined by anatomy and genetics existing at the time of birth.

8-27-1002. Prohibited coverage for gender-affirming medical care under a group insurance plan for state employees.

(a) On and after July 1, 2026, the state insurance committee shall not approve or renew a state employee group insurance plan under part 2 of this chapter that provides coverage and benefits for a medical procedure if the performance or administration of the procedure is for the purpose of:

(1) Enabling an individual to identify with, or live as, a purported identity inconsistent with the individual's sex; or

(2) Treating purported discomfort or distress from a discordance between the individual's sex and asserted identity.

(b)

(1) Subsection (a) does not prohibit the committee from approving coverage and benefits under the plan if the performance or administration of the medical procedure is to treat an individual's congenital defect, precocious puberty, disease, or physical injury.

(2) As used in subdivision (b)(1), "disease" does not include gender dysphoria, gender identity disorder, gender incongruence, or any mental condition, disorder, disability, or abnormality.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect July 1, 2026, the public welfare requiring it.